

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 16, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BROOK TERRELL vs. HEATHER DUKE; ET AL.
Case No. CU24-05460**

Defendants Motion for Sanctions

TENTATIVE RULING

Defendants JOHN M. JAMESON CONSTRUCTION, INC. and JOHN M. JAMESON ("JAMESON Defendants") move for sanctions against Plaintiff BROOKE TERRELL on the basis that her first amended complaint alleging causes of action against them for negligent misrepresentation, fraud, and negligence is indisputably without merit.

Code of Civil Procedure section 128.7 permits a court to impose sanctions for filing a pleading if the court concludes that the pleading was filed for an improper purpose or is indisputably without merit, either legally or factually. (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440.) A claim is factually frivolous if it is not well grounded in fact and legally frivolous if it is not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law. (*Ibid.*) A party moving for sanctions under section 128.7 on grounds of a meritless pleading must show that the filing party's conduct was objectively unreasonable, meaning that any reasonable attorney would agree that the claim is totally and completely without merit. (*Ibid.*)

JAMESON Defendants do not demonstrate that Plaintiff's first amended complaint is not indisputably without merit such that any reasonable attorney would agree the claims within are meritless. JAMESON Defendants' arguments that causes of action not alleged against them are without factual basis because Plaintiff states those causes of action against Doe defendants alleged in boilerplate pleading to be JAMESON Defendants' agents and/or alter egos is frivolous. A Doe defendant is not considered a

party to litigation until actually named as a particular party. (*Gilmore v. Lick Fish & Poultry, Inc.* (1968) 265 Cal.App.2d 106, 112.) Plaintiff's causes of action alleged against JAMESON Defendants – those for negligent misrepresentation, negligent misrepresentation, and negligence – contain clear allegations of fact stating JAMESON Defendants' liability beyond her use of Does: she alleges that she engaged JAMESON Defendants to provide her a quotation of repair costs, that JAMESON Defendants falsely represented their qualifications to provide such a quotation, and that they falsely and/or negligently provided her an unrealistically low quotation. (1AC at ¶¶ 33-35, 49-53, 72-73, 75.) Her reliance and their intent to induce reliance can be inferred from the simple fact that they offered a quotation in the context of being retained to inform Plaintiff of what the costs to repair the property would be so that she could confidently proceed with a real estate purchase. (*Id.* at ¶¶ 22, 36.) Plaintiff's prayer properly requests estimated damages from harms allegedly caused by JAMESON Defendants' acts or omissions, notably those flowing from her allegedly being deceived into continuing with the real estate purchase and having to engage in repairs more costly than estimated.

JAMESON Defendants' motion is denied.

TANYA INIGUEZ vs. FCA US, LLC; ET AL.
Case No. CU25-01701

Defendant FCA US, LLC's Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. FCA's notice of motion does not provide notice of local ruling 3.9 regarding tentative rulings.

Defendant FCA US, LLC ("FCA") moves for judgment on the pleadings against Plaintiff TANYA INIGUEZ's complaint relevantly alleging violations of the Song-Beverly Consumer Warranty Act (the "Act") and fraudulent inducement. Summarized, Plaintiff's complaint alleges that FCA violated the Act in that it failed to repair or repurchase Plaintiff's 2016 Chrysler 200 (the "Vehicle") after the Vehicle manifested defects within the warranty period and FCA concealed existence of the Vehicle's 9-speed transmission defect from Plaintiff prior to purchase.

Notice of Tentative Ruling. FCA's notice of motion does not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). FCA is to observe local rules going forward.

Legal Standard

A defendant may move for judgment on the pleadings on the basis that the complaint against him does not state facts sufficient to constitute a cause of action. (Code Civ.

Proc., § 438, subds. (b)-(c).) The grounds for such a motion must appear on the face of the pleadings or from judicially noticeable materials. (Code Civ. Proc., § 438, subd. (d).) The standard for granting a motion for judgment on the pleadings is essentially the same as that for sustaining a general demurrer: that is, whether the pleadings and matters judicially noticeable reveal that a party is entitled to judgment as a matter of law. (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) As with a demurrer, then, a court considering a motion for judgment on the pleadings accepts as true all properly pleaded facts of a complaint but does not accept as true mere conclusions or deductions of fact or law. (*Greif v. Sanin* (2022) 74 Cal.App.5th 412, 426.) Admissions contradicting the allegations of the party making the admissions are properly considered on a motion for judgment on the pleadings. (*Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.)

Statutes of Limitations and Repose. Code of Civil Procedure section 871.21, subdivision (a) provides that an action covered by section 871.20 shall be commenced within one year of expiration of the applicable warranty. Section 871.21, subdivision (b) provides a six-year statute of repose for the same actions, stating that no such action shall be brought later than six years after the date of original delivery of the motor vehicle. Plaintiff obtained the Vehicle on July 19, 2016, which means that her statute of limitations on the applicable five-year warranty and the statute of repose both expired on July 19, 2022. (1AC at ¶¶ 7-8, Exhibit A [warranty showing five-year duration].) However, section 871.21 only went into effect on July 1, 2025. It would be unjust to hold Plaintiff to a statute of limitations that expired before it existed. Further, section 871.21 only applies to actions involving manufacturers who opt in to the statutory scheme of which it is a part and at the time Plaintiff originally filed this action FCA had not opted in. The court finds that section 871.21 does not bar any of Plaintiff's causes of action.

Commercial Code section 2725 states that a breach of warranty claim must be commenced within four years of accrual, with accrual occurring at tender of delivery unless the warranty explicitly extends to future performance of goods and discovery of the breach must await the time of such performance. In that excepted case accrual occurs when the breach is or should have been discovered. FCA argues that its warranty, which it admits was a three year or 36,000 mile warranty, did not include a promise of future performance, citing *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 131 (*Cardinal Health*). However, *Cardinal Health* at that pin citation states that the future performance exception applies where a manufacturer warrants performance for a specific period of time. At page 133 *Cardinal Health* distinguishes *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205 (*Krieger*), the case upon which Plaintiff relies to state that she had a guarantee of future performance, on the basis that *Krieger* featured an automobile warranty lasting three years or 36,000 miles and including a promise to repair. *Krieger* and *Cardinal Health* concur that the warranty in this case constituted a guarantee of future performance and the cause of action did not accrue until Plaintiff discovered FCA's breach of warranty.

The three-year statute of limitations on fraud does not apply due to Plaintiff's delayed discovery of the allegedly fraudulently concealed transmission defect, which by the face of the complaint occurred on September 13, 2022 at the earliest. (1AC at ¶ 15.) That date is within three years of the February 2025 filing of the original complaint in this action.

There is no one-year statute of limitations applicable to Plaintiff's implied warranty claim either. *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304-1306 states that an implied warranty under Song-Beverly is coextensive in duration with an express warranty, has a four-year statute of limitations, and can be breached by a latent defect undiscoverable at time of sale, which is just what Plaintiff alleges here.

Sufficiency of Pleading Fraudulent Inducement. *Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828 (*Dhital*) offers applicable precedent as to the sufficiency of Plaintiff's fraudulent inducement cause of action.

In *Dhital* the plaintiff brought a lemon law action over his Nissan vehicle's faulty transmission and additionally alleged fraudulent inducement. (*Dhital, supra*, 84 Cal.App.5th at p. 834.) The trial court sustained Nissan's demurrer on the fraudulent inducement cause of action, deciding that the economic loss rule barred the claim. (*Id.* at p. 835-836.) The appellate court reversed, finding both that the economic loss rule did not bar the claim and that the plaintiff's allegations sufficiently stated fraudulent inducement (insufficiency of pleading being an alternative ground for affirming the trial court ruling that Nissan urged on appeal). (*Id.* at p. 845.)

Regarding the economic loss rule, the *Dhital* court first described the rule: "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Dhital, supra*, 84 Cal.App.5th at p. 837.) "[W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses...The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson*).) Examples of such harm include "where a breach of duty directly causes physical injury; for breach of the covenant of good faith and fair dealing in insurance contracts; for wrongful discharge in violation of fundamental public policy; or where the contract was fraudulently induced." (*Id.* at pp. 989-990.) "[I]n each of these cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. (*Ibid.*) The *Dhital* court noted that *Robinson* states its point quite plainly: fraudulent inducement is an exception to the economic loss rule. (*Dhital* at p. 839.) *Dhital* further observed that although *Robinson* discussed affirmative misrepresentations from the defendant as opposed to fraudulent concealment it did not state that only cases of affirmative misrepresentation qualify for the exception. (*Ibid.*) Rather, *Robinson's* plain statement was that tort recovery should

be allowed where the underlying duty is independent of the contract, and fraudulent inducement by concealment originates independent of the resulting contract because it literally predates formation of the contract. (*Id.* at pp. 840-841.)

Robinson and *Dhital* make it clear that the economic loss rule does not bar Plaintiff's fraudulent inducement claim in the instant case. Plaintiff's claim is based on conduct independent of the resulting contract and is expressly authorized in *Robinson*.

Regarding sufficiency of pleading, the *Dhital* court again first discussed the basic law. Fraudulent inducement is a subset of fraud and so requires the same elements be proven: (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) justifiable reliance, and (5) damages. (*Dhital, supra*, 84 Cal.App.5th at p. 843; *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294-295.) Fraud must always be pleaded with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.) The *Dhital* plaintiff's allegations included that Nissan manufactured and distributed more than 500,000 vehicles with faulty transmissions; that Nissan knew or should have known of the faults from premarket testing and consumer complaints to both the National Highway Traffic Safety Administration ("NHTSA") and to Nissan itself; and that Nissan issued Technical Service Bulletins ("TSBs") regarding the transmission problem. (*Dhital* at pp. 833-834.) The *Dhital* court found all of this sufficient: the allegations stated that Nissan made lemons with transmission defects, Nissan knew of the transmission defects and the hazards they posed, Nissan had exclusive knowledge of the defects but did not disclose them to consumers, Nissan intended to conceal the information, and the plaintiff would not have bought the vehicle in question had the plaintiff known the information. (*Id.* at p. 844.) Allegations that the plaintiff bought the car from a Nissan dealership with a Nissan-backed warranty and that dealerships are Nissan's agents for purposes of sale sufficed to state a buyer-seller relationship between the parties. (*Ibid.*) The court rebuffed Nissan's argument that the plaintiff was not specific enough about what it should have disclosed where the plaintiff described the effects of the transmission defect and alleged that Nissan knew of these effects from premarket testing and consumer complaints. (*Ibid.*)

Plaintiff's allegations line up well with those approved in *Dhital*. Plaintiff here describes the transmission defect at issue as causing "hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking." (1AC at ¶ 26.) Plaintiff alleges that FCA knew or should have known of the transmission system defect from pre- and post-production market testing, consumer complaints, and warranty data. (*Id.* at ¶ 29.) Plaintiff alleges that FCA concealed information about the transmission defect that would have changed Plaintiff's purchase decision had it been known to Plaintiff. (*Id.* at ¶ 31.) Plaintiff alleges a transactional relationship between the parties giving rise to a duty to disclose in that Plaintiff alleges she obtained the Vehicle from FCA's authorized dealership. (*Id.* at ¶ 9.)

Conclusion. FCA's motion for judgment on the pleadings is denied.

THE FISHER FAMILY TRUST vs. TIMOTHY LEFEVER
Case No. CU25-03733

Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

Defendant TIMOTHY LEFEVER demurs to Plaintiff THE FISHER FAMILY TRUST's first amended complaint ("1AC") asserting causes of action for breach of fiduciary duty and professional negligence. Summarized, the 1AC alleges that Plaintiff invested in several real property investment opportunities (the "Modesto Property," "Ceres Property," "Lompoc Property," "Walmart Property," and "Fulton Property") on Defendant's suggestion. Defendant and his business partner Ken Mattson owned various corporate entities that directly owned the real properties at issue and in which Plaintiff invested, or in some cases were cotenant owners of the real properties alongside Plaintiff's direct interests. Defendant and Mattson, acting through their corporate entities, mismanaged the investments, variously transferring away the real properties for inadequate consideration or encumbering the properties such that the equity value was destroyed or diminished, all to Defendant and Mattson's personal gain.

Request for Judicial Notice. Matters subject to judicial notice may support a demurrer under Code of Civil Procedure section 430.30, subdivision (a). The court takes judicial notice Defendant's proffered items, consisting of numerous Secretary of State informational filings related to Defendant's companies and a grant deed transferring the Commerce Court property (relating to the Modesto Property) from KS Mattson Partners to Treehouse Investments. These items are proper subjects of judicial notice as records of the state executive per Evidence Code section 452, subdivision (c) or because the recordation of real property records and the use of a notary public in the execution of such documents assure their reliability and ready confirmability. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924 at fn. 1; *San Francisco CDC LLC v. Webcor Construction L.P.* (2021) 62 Cal.App.5th 266, 281 at fn. 5.)

Legal Standard on Demurrer. The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Sham Pleading Doctrine. Under the sham pleading doctrine, plaintiffs are forbidden to amend complaints to omit harmful allegations from previous complaints or add allegations inconsistent with those of earlier complaints, unless a satisfactory explanation for the changes is made. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) If a party attempts to avoid the defects of an earlier complaint by filing an amended complaint with such unexplained omissions or additions the court may take judicial notice of the earlier pleading and disregard inconsistent allegations. (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151.)

Plaintiff's original complaint in this matter and the 1AC do not contain meaningfully inconsistent allegations; the 1AC is not a sham pleading. Allegations in the original complaint such as those at paragraph 50 stating that Defendant caused his business LeFever Mattson to conduct transactions that damaged Plaintiff are not inconsistent with matching allegations in the 1AC such as those at paragraph 93 stating that Defendant caused transactions that damaged Plaintiff. The original complaint and 1AC also consistently allege that Defendant was personally involved in promoting and conducting certain real estate transactions at issue, which were then managed via his businesses. (See, e.g., Complaint at ¶ 7 [investments "made with and through" Defendant and "managed by" LeFever Mattson], 22 [Fulton Property investment with Mattson acting on behalf of Defendant and LeFever Mattson]; 1AC at ¶ 10 [to original paragraph 7], 52 [to original paragraph 22].) Plaintiff explains that the slight alterations clear up a previous misunderstanding of which of Defendant's business entities were involved in what transactions; the thrust of the allegations – that Defendant exerted control over transactions that damaged Plaintiff – remains the same.

Breach of Fiduciary Duty. The elements of breach of fiduciary duty are (1) the existence of a fiduciary duty, (2) its breach, and (3) damages. (*O'Neal v. Stanislaus County Employees' Retirement Assn.* (2017) 8 Cal.App.5th 1184, 1215.)

Defendant was allegedly Plaintiff's real estate broker with regard to all of the property transactions described in the 1AC. (1AC at ¶ 8.) However, the 1AC does not allege a breach of a real estate broker's fiduciary duty to his client, as the alleged wrongs do not concern the brokering of a real estate transaction. The alleged trouble with the Modesto Property was that Defendant allegedly later deceived Plaintiff into transferring its interest to his company, the alleged trouble with the Lompoc Property was that it was sold in 2022 without Plaintiff's consent, the alleged trouble with the Ceres Property was that Plaintiff's deed was never recorded and the property was later sold without Plaintiff's consent, the alleged trouble with the Walmart Property was that it was not sold quickly as promised and the property was transferred without Plaintiff's consent, and the alleged trouble with the Fulton Property was that Plaintiff was not told the truth about where the investment money was going. Three of these deals – those for the Lompoc, Walmart, and Fulton Properties – do not implicate Defendant as a real estate broker because Plaintiff does not allege that Plaintiff purchased real estate. Rather, Plaintiff alleges that it invested in businesses of Defendant's that in turn acquired those pieces

of real estate. This fact also underpins Defendant's standing argument, addressed below.

With regard to the CERES property, though, Plaintiff alleges it directly purchased an interest in real property and Defendant failed to inform Plaintiff that the property was encumbered by a bank loan. Plaintiff was only told that Mattson had a small personal note against the Ceres Property and the Ceres Property was "essentially unencumbered." (1AC at ¶ 41.) The 1AC states a breach of a real estate broker's fiduciary duty with regard to the Ceres Property.

As to the CERES property, the 1AC implicates other forms of fiduciary duty as well. A cotenant of real property owes a fiduciary duty to other tenants not to profit at the expense of the other tenants' interests in the real property. (*Wilson v. S.L. Rey, Inc.* (1993) 17 Cal.App.4th 234, 242.) Plaintiff alleges that Defendant and Mattson's business K.S. Mattson Partners was Plaintiff's cotenant in the Ceres Property. (1AC at ¶ 39.) The cotenancy placed a fiduciary duty on Defendant and Mattson via the company Plaintiff alleges they entirely controlled not to do any harm to the communal property interest, so Plaintiff states a breach of that fiduciary duty where it alleges that Defendant and Mattson transferred ownership of the Ceres Property to their other business Valley Oak Investments without soliciting Plaintiff's approval or at least compensating it for its lost ownership interest. (1AC at ¶ 43.) There is also a breach of fiduciary duty in Defendant and Mattson's alleged use of Ceres Property money to finance their separate dealings. (*Id.* at ¶ 42.)

As to MODESTO property, Plaintiff fails to allege a breach of fiduciary duty. Plaintiff alleges that Defendant and Mattson's business LeFever Mattson was Plaintiff's cotenant in the Modesto Property. (1AC at ¶ 11.) However, Plaintiff's allegations are not about harm to the cotenancy. (See *Hendrickson v. California Talc Co.* (1942) 55 Cal.App.2d 467, 474 [duty of parties in common enterprise is to not deal with subject matter of enterprise to personal advantage].) Plaintiff's allegations are that Defendant duped trustee Virginia Fisher into deeding away Plaintiff's interest in the Modesto Property. (1AC at ¶¶ 15-16.) This is a fraud claim, not a claim that a cotenant diminished the communal interest in real property.

As to the MODESTO, LOMPOC, CERES, AND WALMART properties, Plaintiff fails to allege a breach of fiduciary duty arising from the trust that one party places in another. A fiduciary relationship can arise from the trust one party places in another. Specifically, a fiduciary relationship will arise only where one party reposes a confidence in the integrity of another and the other voluntarily accepts that confidence and knowingly undertakes to act on behalf of or for the benefit of the trusting party. (*Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 100 (*Ashburn*).) The essence of a fiduciary relationship is that the parties do not deal on equal terms but the person accepting the confidence of another has a superior position to exert unique influence over the dependent party. (*Ibid.*) The Fishers, settlors of the plaintiff trust, allegedly trusted Defendant as a good friend. (1AC at ¶ 4.) The 1AC repeatedly states that Defendant promoted investments to the Fishers but more specificity is needed in

alleging how Defendant became their fiduciary. In *Ashburn* the defendant was found to have a fiduciary relationship with the plaintiffs where the plaintiffs were Pacific Bell retirees deciding what to do with their retirement payments and who made their final decisions based on the defendant's recommendations at financial advice seminars. (*Ashburn* at pp. 83-84.) The defendant "held herself out as an expert in helping Pacific Bell retirees, marketing herself as a knowledgeable resource for prospective retirees who faced significant life decisions. [Defendant] provided specific advice to each of the appellants regarding these decisions...[Defendant] influenced each of the appellants to retain her (and her company) to handle their retirements and their retirement investments." (*Id.* at p. 101.) By contrast, the 1AC only states that Defendant "promoted" investments to the Fishers. Not every piece of advice offered or opportunity presented creates a fiduciary relationship. All of the investments but the Fulton Property were promoted to James Fisher, too, who the complaint specifically alleges was a savvy investor. (1AC at ¶ 14.) There is a lack of facts showing how special trust was placed in Defendant such that he had unique and unequal power over Plaintiff's property or affairs.

As to the FULTON property, however, Plaintiff sufficiently alleges a breach of fiduciary duty based upon the trust that one places in another and the resulting acceptance of that confidence. The FULTON property involved a deal that occurred only after the savvy real estate investor James Fisher had passed away. Mattson dealt only with the naïve Virginia Fisher then. (1AC at ¶¶ 14, 51-52, 58 [differences in Fishers' expertise].) Virginia specifically met with Mattson to review her financial assets and heard advice from him to use her life insurance and IRA funds to invest in his recommended real estate opportunities, which would supposedly insulate her from the volatile stock market. (*Id.* at ¶ 52.) She allowed Defendant and Mattson to manage her financial affairs without asking to see documentation. (*Id.* at ¶ 58.) The circumstances alleged here are much more akin to those seen in *Ashburn*, supporting a finding that Mattson was Virginia Fisher's fiduciary for the Fulton Property dealings. Mattson, not Defendant, allegedly wheedled Virginia into the deal but the 1AC alleges that Mattson was acting on Defendant's behalf and in the interests of his business partnership with Defendant in their company LeFever Mattson. For the purposes of demurrer that is sufficient.

CONCLUSION: The court finds that Defendant breached fiduciary duties to Plaintiff as a real estate broker and as a cotenant with regard to the CERES Property. The court finds that Defendant breached a fiduciary duty to Plaintiff as a financial advisor with regard to the FULTON Property. The court does not find a stated or breached fiduciary relationship in the 1AC with regard to Defendant and the MODESTO, LOMPOC, or WALMART Properties.

Derivative and Direct Claims by Shareholders. Generally, a corporation that suffers losses by the wrongdoing of its officers or directors must bring suit itself to recover those losses; if it fails to do so, a shareholder may file a derivative suit on behalf of the corporation. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 124 (*Nelson*).) An individual may not maintain a suit in his own right for damage to a corporation's value. (*Ibid.*) An individual cause of action may co-exist with a derivative cause of action, but

an individual cause of action only exists where the individual's damages are not merely incidental to the corporation's damages; that is to say an action is individual and not derivative only where it appears that injury resulted from some special duty owed the shareholder by the wrongdoer and having its origin in circumstances independent of the plaintiff's status as a shareholder. (*Ibid.*)

Comparison to *Schrage v. Schrage* (2021) 69 Cal.App.5th 126 (*Schrage*) supports finding that Plaintiff's claims concerning the Lompoc, Walmart, and Fulton Properties are derivative. In *Schrage* one brother among three equal co-owners of a car dealership business alleged breach of fiduciary duty against the other two via allegations of using dealership funds to seed a separate company, misappropriation of company assets for personal use, denying the brother access to company books, and general mismanagement, all of which allegedly damaged the dealership and thereby shrank the value of the brother's interest. (*Id.* at p. 151.) All of this made for a textbook derivative claim of damage to the corporation causing damage to the brother only incidentally and through his ownership stake. (*Id.* at p. 152.)

Plaintiff here alleges with regard to the Lompoc, Walmart, and Fulton Properties that Defendant's corporate entities transferred away corporate property or encumbered corporate property for Defendant's personal gain, diminishing if not outright eliminating the value of corporate property and giving Plaintiff no value for its ownership interests. These are derivative claims for harm to the corporate entities.

Professional Negligence. The elements of a claim for professional negligence are a (1) a professional's duty to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise, (2) a breach of that duty, (3) causation, and (4) damages. (*Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1095.) Per the above Defendant was negligent in his duties as a real estate broker concerning the Ceres Property in that he did not inform Plaintiff of a substantial institutional loan against the property at time of purchase.

Motion to Strike. Defendant's motion to strike does not include a memorandum of points and authorities providing directed argument.

A demurrer is not proper against only part of a cause of action. (*Fremont Indemnity Co. v. Fremont General Corp.* (2017) 148 Cal.App.4th 97, 119.) A motion to strike, on the other hand, has limited use to attack a part of a cause of action. For example, it is widely accepted as a proper way to attack a complaint's prayer for punitive damages. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) When a substantive defect is clear from the face of a complaint – examples being a violation of the statute of limitations or a purported but legally invalid claim of right – a motion to strike may properly challenge that defect. (*Id.* at pp. 1682-1683.) A motion to strike is meant to address deficiencies in form and procedure or to excise superfluous or abusive allegations. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

Per the above, Plaintiff sufficiently states causes of action for breach of fiduciary duty and negligence only via reference to the facts regarding the Ceres Property. Though the court finds the allegations support Defendant owing Virginia Fisher a fiduciary duty as to the Fulton Property, Plaintiff lacks standing to bring a derivative action regarding the Fulton Property. Plaintiff's allegations regarding the Modesto, Lompoc, Walmart, and Fulton Properties are superfluous and appropriately struck.

Conclusion. Defendant's demurrer is overruled. Defendant's motion to strike is granted as follows: the factual allegations concerning the Modesto, Lompoc, Walmart, and Fulton Properties (paragraphs 11 to 36 and 51 to 56) are struck. Plaintiff is granted leave to amend. Plaintiff is to file an amended complaint within 30 days of this hearing date.

MICHAEL G. JONES vs. KAISER FOUNDATION HOSPITALS; ET AL.
Case No. CU25-06194

Defendant KASIER FOUNDATION HOSPITALS Motion to Compel Deposition and Request for Sanctions

TENTATIVE RULING

The hearing on Defendant Kaiser's motion to compel Plaintiff's deposition and the case management conference are continued to July 10, 2026 at 9:00 a.m. If Plaintiff appears for the second day of deposition by June 23, 2026, Defendant Kaiser is to notify the court and opposing counsel of their withdrawal of the motion to compel Plaintiff's deposition.

Even if Defendant withdraws their motion, the matter will remain on calendar for CMC on July 10, 2026. CMC statements are due five court days before the hearing date.

PANKAJ SHARMA vs. PAUL SUNAK
Case No. FCS055977

Motion to Compel Further Responses to Discovery

TENTATIVE RULING

Motion to Compel Further Responses

Plaintiffs' motion to compel further responses to their first sets of form and special interrogatories, requests for production of documents, and requests for admission is denied without prejudice.

Plaintiffs' meet and confer declaration does not "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented" (Code Civ. Proc. § 2016.040) and fails to establish that counsel engaged in a "serious effort at negotiation

and informal resolution” that amounted to a sufficient “attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294; *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The declaration establishes only that Attorney Roundy did not immediately respond to Plaintiffs’ counsel’s attempts to meet and confer. (Decl. of Benjamin, ¶ 4.) Counsel have not actually “talk[ed] the matter over, compare[d] their views, consult[ed], and deliberate[d]” regarding any of the discovery requests.

The parties are directed to actually meet and confer, in person, by telephone, or by videoconference, to compare their views, consult and deliberate regarding each discovery request and issue presented in this motion. If, after actually discussing the matter, the parties are ultimately unable to informally resolve each and every issue regarding the outstanding discovery, Plaintiffs may file a motion to compel further responses within 45 days of the date of the hearing or any later date agreed upon by the parties.

No monetary sanctions are awarded at this time.

Motion for Sanctions

The motion for sanctions filed by Cross-defendants Kennedy Wilson Properties Ltd. and Eric Rehn is denied.

The motion seeks sanctions pursuant to Code of Civil Procedure section 128.7 against Cross-complainant Paul Sunak and recently substituted attorney Ronald Roundy for the refusal to dismiss the cross-complaint. However, Cross-complainant Sunak, a represented party, could not have violated section 128.7 because the statute applies only to an attorney or a party without attorney who signs, files, or later advocates a pleading, motion, or similar paper. (Code Civ. Proc. § 128.7(b); *In re Marriage of Reese & Guy* (1991) 73 Cal.App.4th 1214, 1220.) Additionally, the court notes that, unlike the circumstances in *Peake v. Underwood* (2014) 227 Cal.App.4th 428, 449-450, Cross-defendants have not presented any evidence suggesting that Cross-complainant Sunak and his counsel do not actually believe in the merits of his claims. As for current attorney Ronald Roundy, counsel can only be sanctioned for his own conduct, not the conduct of his predecessors. (*Primo Hospitality Group, Inc. v. Haney* (2019) 37 Cal.App.5th 165, 175.) At the time the motion was filed and served, Attorney Roundy had not taken any action that might be construed as further advocating the cross-complaint. (See, *id.* at 175-176 [“at the time Libarle was served with the motion for sanctions, Libarle had not presented any of the objectionable claims in the complaint to the court, whether by signing, filing, submitting, or further advocating the claims, so he could not be held liable for sanctions under section 128.7 based on the notice of motion that was served”].) To the extent Attorney Roundy has advocated the cross-complaint in his opposition, that conduct is not a part of this motion.

CLAUDIA GONZALEZ vs. MEYER CORPORATION
Case No. FCS058246

Plaintiff's Motion to Conduct Financial Condition Discovery

TENTATIVE RULING

On the Court's own motion, the hearing on Plaintiff's motion to conduct discovery on Defendant's financial condition is continued to July 10, 2026 at 9:00 a.m. in Department Seven.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

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